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Puerto Rican Migrant Farmworkers



AN UNTOLD STORY

Thousands of Puerto Rican farmworkers have annually migrated to the United States mainland. For several years, alarming reports have appeared in the press and on the radio and television concerning the working conditions, housing, health, low pay, and gross civil rights violations of these farmworkers. The Puerto Rican migrant farmworkers are recruited by independent mainland growers who have, over the years, formed large grower associations to expedite their need for cheap labor.

By: Gloria Bonilla Santiago Director of Hispanic Affairs Rutgers University

In 1947, the inhuman conditions that the Puerto Rican farmworker faced on the mainland forced a crisis on the Island, where in 1948 the Puerto Rican government established the migration division of its Department of Labor and specifically mandated that it oversee the annual outflow of farmworkers. In its attempt to police the farmworkers situation, the Puerto Rican government established a system in which the government became a necessary party in a "contract" between the individual migrant and large agribusiness conglomerates. What has developed is a government bureaucracy which exports a large part of the Island's "unemployment problem", and an efficient cheap labor delivering system which serves the needs of mainland farmers. Under the system, everyone but the farmworker benefits.

Under the government's program, contracts are negotiated directly with the large growers associations and a situation is established where the worker is consistently denied his basic rights to negotiate the terms and conditions of his own employment.

Migrant farmworkers in the East and South live under deplorable conditions. Housing, public services, welfare and working conditions are well below decent human standards. Education and welfare benefits are virtually non-existent. The efforts of farmworkers to organize and improve their situation have been subjected to public and private harassment, including interference with the right to freedom of association. In this setting, efforts to organize farmworkers outside unions have met with frustration. The hostility of farm employers and local government to organizing efforts as well as the provision of services to a temporary and transient population, along with the language barriers has exacerbated the problem.

El Comité de Apoyo a los Trabajadores Agrícolas (CATA) or Farmworkers' Support Committee, began in the Summer of 1979 for the purpose of giving support to Puerto Rican farmworkers in problem areas of social and political isolation and human rights. Organizing farmworkers is both difficult and risky. Often the fear of recrimination by the growers is enough to stop any worker from becoming actively involved in an organization. This problem is further exacerbated. Even an initial two hour tour of the farms in Southern New Jersey would reveal the manner in which workers are separated: Puerto Ricans from Mexicans from Filipinos — each group in a physically separate labor camp. This practice by farmers only serves to enhance ethnic and racial discrimination and hatred. Often, too, the extreme condition in which farmworkers live means that the idea of seeking long term solutions to day-to-day crises is comprehensible. Immediate relief through service becomes the primary desire and need.

To address these problems, CATA involves and educates farmworkers in various ways, as well as having organizers visit camps on a regular basis as soon as the farm season has begun. CATA convenes regional meetings organized by worker committees in the different regions of Southern New Jersey where farmworkers from different farms can get together and discuss common problems. Workers are taught different mechanisms and processes by which complaints can best be

made — the skills of negotiation and mediation are taught to instruct farmworkers how they can persuade growers to accede to their demands and how to defend farmworker's rights. In addition, farmworkers are taught leadership, organizing and language skills.

The process of educating and organizing farmworkers follows the migratory flow of the workers between Southern New Jersey and Puerto Rico itself. Recognized from CATA's inception, was the problem of maintaining and organizing membership which, after the growing season, migrates back to Puerto Rico for the winter months. The only solution found was to develop a process which would provide for continuity for the organization's growth and stability. The need for continuing work through meetings and the organization of support groups in Puerto Rico was clear. Time and energy was needed to overcome inertia, gain people's trust, and achieve regular well-attended meetings. Not following up, in Puerto Rico, efforts expended in the United States would mean starting from scratch each season.

CATA's leadership realizes that farmworkers have been omitted from the progress on social, moral and legal fronts in which other workers and Americans, in general, have shared. There is a general understanding among CATA members that the struggle to obtain social justice for farmworkers is going to be difficult.

The community to be served by CATA is the community of Puerto Rican farmworkers. It is a large community, roughly 18,000 farmworkers are employed in New Jersey each year (Dominguez, 1984). They fall into three categories: 2,000 traditional migrants from the South and Southwest; 4,000 who come to New Jersey under contract between the Commonwealth of Puerto Rico and the growers; 5,000 non-contract Puerto Rican migrant farmworkers; 7,000 seasonal day haul workers who come from Philadelphia, Camden, Vineland and other South Jersey towns, and return to their homes the same day.

The ethnic breakdown of farmworkers is 80% Hispanic and 15% Black. The large majority of New Jersey farmworkers are Hispanic from Puerto Rico and Mexico. Over 75% speak no English (N.J. Department of Labor, 1984.) Average income for farmworkers is much lower than for non-farmworkers. Over 80% of farmworkers did not finish high school. Real wages for farmworkers declined by 25% between 1971 and 1976, as net wages only kept pace with federal minimum wage laws (up 7%) and inflation, especially for the poor, has skyrocketed (up 18%). In 1978, the average annual income for farmworker's family of four was \$3,000, over 40% below the poverty line (N.J. Department of Labor, 1984.)

According to available data, during 1982 and 1983, the following numbers of workers were recruited for Glassboro Service Association (GSA) in Puerto Rico for the New Jersey employment:

1982.....	834 workers
1983.....	759 workers

The total number of contract workers recruited for "mainland" farm employment during these years was:

1982.....	2,577 contract workers
1983.....	1,815 contract workers

According to representatives of the Secretary in New York, each of these recruited workers becomes a participant in the "Interstate Clearance System", which transfers workers between states depending on local needs. In addition to these workers, there is a smaller group of "walk in" farm laborers who are hired by GSA or independent employers and who are not parties to the agreement at all. These workers either travel from Puerto Rico on their own or arrive at the GSA camp or farms from "mainland" residences. While there is no clear information indicating the number of these "walk ins", the Department of Labor, 1984 estimates that there were between 700 and 800 day haul workers in New Jersey during the 1983 growing season.

In August of '79, a group of 28 farmworkers met in the City of Vineland, New Jersey, and, as a group, it recognized a set of bylaws and called that newly born committee (organization) El Comité de Apoyo a los Trabajadores Agrícolas (CATA). The new organization, C.A.T.A. met at least twice a week to discuss problems at different farms, to see how C.A.T.A.'s organizational structure will be developed. During these meetings (August to October of 1979), a group of workers from Arroyo, Puerto Rico, brought out the concern that, to be successful in organizing migrant farmworkers, one must place himself as a migrant (6 months working in New Jersey, 6 months residing in Puerto Rico). This concern of going back and forth started a new organization concept within C.A.T.A.



Finally, for the first time, a group of farmworkers went to Puerto Rico in the Fall of 1979 (November and December) to follow up those workers who had shown interest in organization. Approximately 48 towns were visited in a period of three weeks. A decision was made to go back in February 1980 and organize town meetings among the migrant work force in Puerto Rico. During the month of February, ten (10) town meetings were held in Puerto Rico, with an approximate attendance of 300 workers.

During the harvest of 1980, C.A.T.A. was involved in several labor disputes, but the big one was the Sunny Slope Strike in South Jersey. After the strike, the C.A.T.A. membership concluded that to strike a South Jersey grower, "one must be financially solid, i.e., with money to support the strikers. Also, one must have strong support among progressive New Jersey labor organizations. A much better equipped legal advice group needs to be organized before the strike." (C.A.T.A., Annual General Assembly, 1983). From this experience, the strikers learned that, although they had lost the first round, the opportunity to win was still there.

After the strike, C.A.T.A.'s efforts were to organize C.A.T.A., First Annual Assembly. At the Assembly, a major issue was brought out: Was C.A.T.A. going to organize only Puerto Rican workers, or was C.A.T.A. going to organize other workers, also? A resolution was passed to include all Puerto Rican farmworkers as C.A.T.A. members. The concept of town delegates was introduced at the Assembly. A town delegate means that a worker must be responsible for organizing town assemblies in his home town in Puerto Rico. According to Angel Dominguez, the Assembly proved to be a success.

Another trip was organized in December 1980 to go to Puerto Rico, and town assemblies were organized for February 1981. In the harvest of 1981, C.A.T.A.'s organizing methodology has been direct services to its members, organized workers' leadership seminars, and emphasizing the concept of Regional Committees. Direct services means to provide the membership with all types of services (transportation to doctor's appointments, court appearances, financial assistance, etc.). The idea behind direct services is that one satisfied member will be an excellent spokesperson for the organization. During 1984, C.A.T.A. held five farmworkers' Leadership Seminars in conjunction with the Labor Education Center of Rutgers University. In fact, the Seminars held at the County Colleges on a Saturday and Sunday had enrollments of over 65 farmworkers. In addition, other seminars have been held to establish a more workable relationship between labor camps and C.A.T.A. membership.

The concept of Regional Committees is that at least every two months a general meeting of all C.A.T.A. members from different farms will meet as a Regional Committee. A region could be a county or two towns, depending on the area itself. The purpose of the Regional Committee is to get to know the problems of the workers at any particular farm and to see how similar its problems are to those on the other farms. If at all possible, the Regional Committee will develop farm committees. The idea is that there should be a farm committee at each of the farms that is represented at the Regional Committee. A farm committee will work as a grievance committee. The idea was to have workers and growers talking to one another without the need for a middle person.

After much discussion within the organization, C.A.T.A. has come to the conclusion that migration from Puerto Rico to the United States is, at this time, a necessary evil, not an acceptable way of life for Puerto Ricans. Thus, a major goal of C.A.T.A. has become the development of an economically viable alternative to the continuous migratory cycle of its members. At its General Assembly on September 19, 1983, the membership instructed its officers to develop economic alternatives for its membership in Puerto Rico. In looking at the resources available to its membership, C.A.T.A. concluded that its members are most skilled in different phases of agricultural development and often times also own farmland. In a 500 membership survey questionnaire conducted during the Summer of 1984 by this author, 375 C.A.T.A. members indicated that they own farmland on the island.

Puerto Rican farmworkers employed on farms in southern New Jersey face living and working conditions, exploitation and a host of problems which are much worse than other workers face, which have continued for decades, and which stem, ultimately, from their powerlessness.

While workers in industry even in completely unskilled

occupations — receive overtime wage rates, farmworkers who may work over 70 hours per week during the harvest season are exempt from such coverage. While industrial workers are usually able to build up some savings which can be used during periods of crisis (loss of job from sickness, injury or lay off), a farmworker will find himself with nothing to fall back on at such times.

Farmworkers are finding themselves closer than ever to the very real line separating survival and non-survival. A farmworker who is lucky enough not to be subject to economic or physical exploitation by a crew leader or farmer can nevertheless be pushed under this line by several relatively common situations: occupational injury or disease (farmwork is one of the most hazardous occupations), and the sudden loss or suspension of employment (usually through no fault of his own, and often with little or no warning). And because both situations tend to occur far from friends and family, the question of survival is a very real question.

Legally farmworkers in general have been exempted from most of the statutory protections which other workers grew to enjoy over the last three or four decades, including the collective bargaining minimum wage maximum hours protection of the Fair Labor Standards Act and its child labor provisions. Today, the federal minimum wage law applies only to large farms which use five hundred man days of agricultural labor in any calendar quarter of the preceeding year.

Federal and state agencies have inadequate staffing to cope with migrant problems. Availability of legal representation is rapidly declining as the federally funded Farmworker Division of the legal services agency in New Jersey has already been sharply curtailed and is being subject to even more proposed cutbacks.



In a sociological context a number of significant factors contribute to the isolation of the farmworker from the mainstream of the community in which he works (and consequently to his vulnerability to exploitation as well). Education is another important factor. The typical farmworker has less than five years of education. This can prove to be an obstacle to obtaining basic needed services, let alone self improvement. Those farmworkers who migrate from Puerto Rico each year face an additional kind of isolation: because of the extremely high rate of unemployment at home (40%, or now higher) (Puerto Rico Department of Labor, 1981) many men (both married and single) are left no alternative than farmwork in states such as New Jersey. Since only males are actively recruited by growers on

the East Coast, the separation from families is high. Variables of race and culture can also serve barriers to the integration of migrant workers into the mainstream. The migrant farmworker population however, is isolated by more than poverty and language differences. Except for day-haul workers, seasonal laborers are housed on the property the farmer whose land he or she works, or, in some cases, in a labor camp run by a crew leader near the farmer's fields. Such labor camps are deep within the confines of the farm, obscured from view, and inaccessible except to the laborers and the owner. Typically the distance from the camp to the nearest town or even to other farms is greater than walking will allow. Combined with the lack of public transportation, this also serves to isolate the farmworker from both the local community as well as from other farmworkers. Additionally, many camps do not have telephones, which further serves to enhance the isolation of the worker.



Whether migrants reside in labor camps two or twenty five miles from small rural communities, their isolation is heightened by the hostile reception from surrounding small communities. Migrants have learned through experience that they are not always welcome.

The nature of the work itself also serves to reinforce the laborer's isolation. The crops require constant care and the seven-day-week is typical. During the critical harvest period the work day is fifteen hours long. The hours can be longer for the day-hauler, who is hired at 3:00 or 4:00 a.m. and who is bused home well after the sun has set. For them, the work day consumes all but three or four hours.

The labor is hard and conditions are appalling. A typical labor camp houses ten to fifteen workers. Some are little more than wooden shacks in total disrepair, while others are cinder block structures with bare cement floors. Even those which conform to minimal government standards are depressing places. Disputes over meal and rest breaks are common. Drinking water is often inadequately supplied. The federal law has yet to require that farm laborers have toilet facilities in the fields.

The migrant worker is without roots, and his constant transience (OSHA, 1981) combined with poverty, translates into powerlessness. The worker is wholly dependent upon the whim of the employer. Such dependency breeds fear. To complain about physical abuse, about conditions or habitation of work, or to attempt to exercise a legal right, assuming knowledge of that right, is to risk the loss of employment. The day-haul worker is held captive in a different fashion. Most day-

workers supplement inadequate welfare grants. They fear that a complaint will result in both loss of income and prosecution for welfare fraud. Undocumented workers possess a more obvious fear of retaliation for complaints. Loss of work means not only loss of subsistence, but eviction from housing and frightening reality of being stranded in a foreign land without money or transportation. Until recent years, the New Jersey migrant farmworker was without hope or a means to resist deprivation or constitutional or statutory rights. There was no mechanism to create a sense of power in the struggle for decency and justice.

Farmworkers from the city do farmwork to supplement small, often fixed, incomes. Many, from the ghettos or surrounding urban areas, find work on farms through crew leaders or day-haul contractors, who systematically exploit them. Such work is often made available on farms which attempt to use a cheaper work force than contract workers. This has sometimes jeopardized the employment of the contract worker from Puerto Rico, who comes to New Jersey to escape the Island's unemployment just to earn wages seldom higher than the minimum wage. Others are undocumented workers, who must accept illegally low wages or poor conditions. While their number in South Jersey is not large, it is steady and concealed.



Recently the state of New Jersey, through its legislature has clearly demonstrated the powerlessness of farmworkers within our society. In this past year New Jersey approved legislation protecting industrial workers from the use of toxic products in the workplace and at the same time, specifically excluded farmworkers from enjoying the same rights of protection.

The New Jersey legislature further passed a bill amending the Unemployment Compensation Act, specifically changing the monetary criteria which determines if a worker is eligible or not. Whereas, a worker needed to earn \$2,200 a year in order to qualify, he will now have to earn \$4,100 (each year this figure will go up as industrial wages in New Jersey rise). Otherwise he will have to earn at least \$51.00 a week for twenty weeks. The groups of worker most drastically affected by these provisions are farmworkers. Most of them will find it difficult, if not impossible, to meet either criteria. The farmworkers season hardly ever lasts twenty weeks and most farmworkers do not earn \$4,000 in a season.

In New Jersey C.A.T.A. (Comite de Apoyo a los Trabajadores Agrícolas) or Farmworkers Support Committee, has been successful in mobilizing farmworkers over four times during

the peaking season to demonstrate and participate at public hearings held by the legislature on two issues, unemployment and pesticides. In December of 1984, the governor of New Jersey signed an emergency unemployment bill allowing farmworkers special exception for their eligibility and the legislature created a commission to study the economic problems of farmworkers and report back proposed legislation for 1985.

Although the pesticides bill No. 1342 "Right to Know About Pesticides" was enacted specifically excluding farmworkers, C.A.T.A., a member of the New Jersey Campaign Against Toxic Waste, who has lobbied for the passage of the bill, convinced the group to renew its efforts until agricultural workers were included. New legislation has been introduced.



Thus C.A.T.A., has entered a new stage in its organizational development, it has begun to gain other citizens' groups in an effort to form coalitions around issues of importance to organize farmworkers. Presently, C.A.T.A., has a membership of a thousand members here and in Puerto Rico. C.A.T.A., faces obstacles in organizing their work. It has been the only group who successfully lasted more than a year organizing Puerto Rican farmworkers and the only one which has been able to form a strong base organization to provide services to and through those means organize the Puerto Rican farmworker.

Despite many successes, C.A.T.A. is confronted with some of the problems organizations and organizers have faced in developing a grassroots organization for migrant workers in this country. The lack of funding, the lack of training for staff, the lack of organization and communication between areas of work. C.A.T.A.'s final goal is to become a movement (Dominguez, 1984) to support and advocate for the formation of a farmworkers union, "controlled and directed by farmworkers." 



THE EXILED

PATHOLOGY OF CENTRAL AMERICAN REFUGEES

by Jean Molesky

A recently arrived Salvadoran male of fourteen is terrorized as a plane flies overhead at Casa Oscar Romero, a sanctuary house in San Benito, Texas, and hides under the closest table. In California, a 29 year old Guatemalan Indian woman is tormented by recurrent recollections and nightmares of the disappearance and murders of her three brothers and of the burning of her parent's home and fields by the military. In a San Francisco courtroom, a Salvadoran refugee stands before a judge and jury and denies that he had been kidnapped, beaten and tortured though he and his family had documented these experiences for the lawyer. "He's displaying a total lack of affect," the judge accused, "so he must be lying".

These exiled refugees and others from Central America whose numbers are estimated at 800,000 in the U.S. are war victims now scarred with psychological wounds. Most fearing deportation, they take up an anonymous existence and live shadowed lives. Within themselves they are haunted by recurrent recollections of the traumatic event, become numb to and detached from the external world, or often experience a hyperalertness, exaggerated startle response or sleep disturbance. They come to the U.S. bearing marks of the massive generalized terror of war.

Almost every city in the U.S. has Central American refugees. Houston has 150,000 Salvadorans; San Francisco, 80,000-150,000; and Los Angeles more than 250,000. There are over half a million Salvadorans in the U.S. and the number of Guatemalans increases every year.